

6. 9:00 AM CASE NUMBER: C25-01397
CASE NAME: ROBERT RODRIGUEZ VS. SIMONA ZAKHEIM
HEARING ON DEMURRER TO: PLAINTIFF'S SECOND AMENDED COMPLAINT
FILED BY: ZAKHEIM, SIMONA YANA S.

TENTATIVE RULING:

On the Court's own motion, the hearing is continued to 9:00 a.m. on September 28, 2026.

7. 9:00 AM CASE NUMBER: C25-01397
CASE NAME: ROBERT RODRIGUEZ VS. SIMONA ZAKHEIM
*HEARING ON MOTION IN RE: TO STRIKE PORTIONS OF PLAINTIFF'S SECOND AMENDED COMPLAINT
FILED BY: ZAKHEIM, SIMONA YANA S.

TENTATIVE RULING:

On the Court's own motion, the hearing is continued to 9:00 a.m. on September 28, 2026.

8. 9:00 AM CASE NUMBER: C25-01478
CASE NAME: EMAD ISKANDER VS. JOAN OCAMPO (EMPLOYEE)
*HEARING ON MOTION IN RE: MOTION FOR ORDER VACATING AND SETTING ASIDE DEFAULT JUDGMENT
FILED BY:

TENTATIVE RULING:

Pursuant to the unopposed ex parte application to continue the hearing date, the hearing date is **CONTINUED** to **October 19, 2026, 9:00 a.m.**, in **Department 34**. The Court is issuing a separate order regarding the continuance. The Court's order denies the request for leave to submit any further papers.

9. 9:00 AM CASE NUMBER: C25-01639
CASE NAME: ROSS IVICA VS. SHAPELL NORCAL RENTAL PROPERTIES LLC
*HEARING ON MOTION IN RE: STRIKE PORTIONS OF 1ST AMENDED COMPLAINT
FILED BY: SHAPELL NORCAL RENTAL PROPERTIES LLC

TENTATIVE RULING:

Before the Court is Defendant Shapell Norcal Rental Properties, LLC's and Defendant Shapell Falcon Bridge LLC's (collectively, "Defendants") motion to strike portions of Plaintiff Ross Ivica's ("Plaintiff") First Amended Complaint ("FAC"). Plaintiff, who is in pro per, alleges causes of action for (1) Wrongful Eviction; (2) violation of Covid-19 Rental Housing Recovery Act; (3) Unfair Business Practices; (4) Breach of the Covenant of Quiet Enjoyment; and (5) Breach of Statutory Duty.

For the following reasons, Defendants' motion is **GRANTED**, with leave to amend.

Legal Standard

Civil Code section 3294 provides in relevant part:

In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant...

(1) "Malice" means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.

(2) "Oppression" means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.

(3) "Fraud" means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

(Civ. Code § 3294.)

Code of Civil Procedure section 436 provides:

The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper:

(a) Strike out any irrelevant, false, or improper matter inserted in any pleading.

(b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

(Code Civ. Proc. § 436.)

Motion

Defendants seek to strike paragraphs 42 through 46, 63 and portions of prayer paragraph 4 that seek punitive damages (the "Punitive Damages Related Allegations") pursuant to Code of Civil Procedure sections 435 and 436.

Analysis

A plaintiff must plead more than conclusory allegations to seek punitive damages. (*Smith v. Superior Court* (1992) 10 Cal.App.4th 1033, 1042.) "In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff." (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.)

Plaintiff must plead specific facts showing that Defendants' conduct was oppressive, fraudulent or malicious. (See *Smith v. Sup.Ct. (Bucher)* (1992) 10 Cal.App.4th 1033, 1041-1042.) Plaintiff has not done so. Plaintiff does not allege any "base, vile, or contemptible" conduct. (see *College Hospital Inc. v. Superior Court, supra*, 8 Cal.4th at 725). The FAC is bereft of any specific facts showing that Defendants' conduct was oppressive, fraudulent, or malicious. The conclusory allegations that

Defendants “acted with malice, oppression, and fraud,” “knowingly submitted, or caused to be submitted, false and misleading sworn statements to the court regarding Plaintiff’s eligibility for Covid-19 rental assistance,” and “Defendants willfully blocked Plaintiff from paying rent while knowing that he had funds available and was attempting to pay in full” (FAC at ¶¶ 42-44) are insufficient.

Furthermore, when seeking punitive damages against a corporation like Defendants, Plaintiff must allege “advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud or malice ... on the part of an officer, director or managing agent of the corporation.” (Civ. Code §3294.) A review of Plaintiff’s FAC shows that there are no allegations regarding the conduct of an officer, director, or managing agent of Defendant. Accordingly, this requirement of pleading punitive damages against a corporation has not been satisfied. (See Code Civ. Proc. § 3294(b).)

Disposition

The Court finds and orders as follows:

1. Defendants’ motion to strike is GRANTED. The Punitive Damages Related Allegations in the operative Complaint are deemed STRICKEN.
2. Leave to amended is GRANTED. Code Civ. Proc. § 472a(d). Any amended complaint shall be filed and served within ten (10) days of notice of entry of this order.
3. The moving party shall prepare the proposed order after hearing.

10. 9:00 AM CASE NUMBER: C25-02209
CASE NAME: BRASS DOOR RESTAURANT INCORPORATED VS. 8 TO 5 PROPERTIES LLC
***HEARING ON MOTION IN RE: STRIKE 1ST AMENDED COMPLAINT**
FILED BY: 8 TO 5 PROPERTIES LLC
TENTATIVE RULING:

Before the Court is a motion to strike filed by defendants, 8 to 5 Properties LLC, and its managing member, Nancy Schlesinger, with respect to the First Amended Complaint, filed by plaintiff, Brass Door Restaurant Incorporated. The motion to strike is **DENIED**. Defendants shall file and serve their answer, as previously ordered, on or before September 24, 2026.

A. Allegations and Background

This is a commercial lease dispute involving a property in San Ramon at which plaintiff operated a restaurant. 8 to 5 Properties, LLC entered into the current lease with plaintiff's predecessor in interest on July 1, 2015. (FAC, Exhibit A [Lease].) The Lease is a 10-year lease with two 5-year options. Plaintiff took over the lease in March 2016. Rent at the time was \$14,000 per month, and has increased each year such that it was \$20,427.01 per month as of June 1, 2025. (FAC, ¶10-11.)

Plaintiff had been an exemplary tenant during the past 9 years of lease performance and has generally paid rent on time and in full and maintained the premises in good condition. (FAC, ¶12.) When the Covid pandemic hit, plaintiff, like every other restaurant in California, found itself subject to state and local government's severely restrictive shelter-in-place rules and could not operate at all, or was limited to takeout-only. (FAC, ¶13.) The rules severely impacted cash flow, including plaintiff's